

March 09, 2018



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11352
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Class 3, Class 8, Class 6 and Class 9 hazardous materials across a public road, from one part of a plant to another, as essentially not subject to the hazard communication requirements in Part 172. This special permit provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.200, 172.300, 172.400 and 172.500, except as specified herein.
5. BASIS: This special permit is based on the application of PCTI Puerto Rico, Inc. dated July 7, 2017 submitted in accordance with § 107.105, and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Alkaloids, solid, n.o.s.	6.1	UN1544	III
Benzaldehyde solution	9	UN1990	III
Corrosive liquid, acidic, organic, n.o.s.	8	UN3265	III
Extracts, flavoring, liquid	3	UN1197	II, III
Environmentally hazardous substance, solid, n.o.s.	9	UN3077	III
Flammable liquids, corrosive, n.o.s. (<i>contains ethanol and acetic acid</i>)	3	UN2924	III
Flammable liquids, corrosive, n.o.s. (<i>contains ethanol and carminic acid</i>)	3	UN2924	III
Phosphoric acid, liquid	8	UN1805	III
Propionic acid <i>with not less than 90% acid by mass</i>	8	UN3463	II
Terpene hydrocarbons, n.o.s.	3	UN2319	III

7. SAFETY CONTROL MEASURES: Packagings must be in accordance with the requirements of the Hazardous Materials Regulations, as appropriate.
8. SPECIAL PROVISIONS: This special permit only applies to those materials listed in paragraph 6, packaged in accordance with the HMR, to be transported across a public road from one part of PepsiCo's plant to another.

- a. The safety data sheet (SDS) for each material being transported must be readily available to, and recognizable by, authorities in the event of an accident or inspection.
 - b. MARKING - No marking required.
 - c. LABELING - No labeling required.
 - d. PLACARDING - No placarding required.
 - e. SHIPPING PAPERS - No shipping papers required.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: No modal-specific requirements are required by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - "The Hazardous Materials Safety and Security

Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG